

Case Name: Bank of America, N.A. v. Christopher Juniel

Case No.: 25CV483263

This action arises from the breach of a Credit Card Agreement (Agreement). Plaintiff Bank of America, N.A. (Plaintiff) alleges Defendant Christopher Juniel (Defendant) defaulted on the Agreement by failing to make timely payments. “Because the Defendant was in default under the Agreement, Plaintiff declared Defendant’s entire account balance of \$8861.67 immediately due and payable. Defendant continues to fail to pay Plaintiff for all amounts due.” (Complaint at p. 3.) Plaintiff sues Defendant for breach of contract.

Defendant moves to compel arbitration of this action based on an arbitration provision he contends is in the Credit Card Agreement. Plaintiff has not opposed this motion. Having reviewed the arbitration provision, the court grants the motion and stays this action pending the outcome of arbitration.

LEGAL STANDARD

The arbitration provision states, “[t]he arbitration of any matter involves interstate commerce and is governed by the Federal Arbitration Act, 9 U.S.C. §§ 1 et seq. (the ‘FAA’).” Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

Code of Civil Procedure section 1281.2 provides: “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the

controversy exists, unless it determines that: [¶] The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement.”

In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement’s existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (*Iyere, supra*, 87 Cal.App.5th at p. 755.)

ANALYSIS

Defendant has shown the existence of a valid agreement to arbitrate. “The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature. Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion.’ ” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, internal citations and quotations omitted.) Here, Defendant has set forth the arbitration provisions verbatim at the end of his motion. He is not required to do more. “For purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of authentication.” (*Gamboa, supra*, 72 Cal.App.5th at pp. 165-166.) Additionally, while in California there must be a “written agreement” to arbitrate, the written agreement need not be signed. (*Banner Entertainment v. Superior Court* (1988) 62 Cal.App.4th 348, 361 [noting that “it is not the presence or absence of evidence of a signature which is dispositive; it is the presence or absence of evidence of an agreement to arbitrate which matters.”]) Thus, the lack of signature is not dispositive because Plaintiff has shown a written agreement exists.

The arbitration provision applies to Plaintiff’s claims because it states “[t]his section on arbitration applies to accounts[.]” It should be noted, however, that the Credit Card Agreement attached to Plaintiff’s complaint does not include an arbitration provision like the one copied in

Defendant's moving papers. Defendant indicates that the entire Agreement can be found at <https://www.bankofamerica.com>; however, this is a link to the Bank of America website and not a link specific to the Agreement. Nevertheless, Plaintiff has not opposed this motion to challenge the arbitration agreement's existence or authenticity. Instead, Defendant has met his prima facie burden of proving the existence of an arbitration agreement as well as its application to this case. In any event, the failure to timely file an opposition is a basis for the Court to grant the motion, as the Court may construe such non-opposition as a concession that the motion is meritorious. (See *D.I. Chadbourne, Inc. v. Super. Court* (1964) 60 Cal.2d 723, 728, fn. 4; see also Cal. Rule of Court 8.54, subd. (c) ["A failure to oppose a motion may be deemed consent to the granting of the motion."].)

For these reasons, the motion to compel arbitration is GRANTED. A stay of these proceedings is proper under Code of Civil Procedure § 1281.4 and 9 U.S.C. § 3. The Court STAYS this action in its entirety pending the outcome of arbitration. The demurrer to the cross-complaint is MOOT as a result of this decision.

CONCLUSION

The motion to compel is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration. The demurrer to the cross-complaint is MOOT.

The Court will prepare the order.